

HOUSE No. 2354**The Commonwealth of Massachusetts**

PRESENTED BY:

Thomas P. Walsh*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of certain fairground properties.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/17/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/14/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>2/14/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>2/14/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/24/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/24/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/26/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>3/4/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/12/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>3/18/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>3/18/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/9/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>7/16/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>7/21/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>7/23/2025</i>

HOUSE No. 2354

By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 2354) of Thomas P. Walsh and others relative to the use of certain fairground properties. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of certain fairground properties.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 40A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the first sentence of the second paragraph
3 the following sentence:-

4 Nor shall any zoning ordinance or by-law prohibit, regulate or restrict the use of land or
5 structures dedicated in whole or in part to periodic operation of an agricultural fair, provided that
6 such land or structures are owned and such agricultural fair is operated by a nonprofit
7 corporation established for such purpose, and further provided that any use of such land or
8 structures is in furtherance of such nonprofit corporation's purpose.

9 SECTION 2. This act shall take effect upon its passage.